

Substitute dated November 26, 2018

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING, CREATING, DELETING AND RE-CREATING VARIOUS CHAPTERS AND SECTIONS WITHIN TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE CHEYENNE CITY CODE RELATING TO GENERAL PROVISIONS, AND INCLUDING ADOPTION OF THE INTERNATIONAL BUILDING CODE AND OTHER RELATED CODES, 2018 EDITION."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code, relating to general provisions, and adoption of the International Building Code and other related codes, 2015 Edition are hereby amended, created, deleted and re-created as set out in this ordinance. Chapters and sections currently existing within Title 15, Buildings and Construction, not set out or clarified by an *[Editing note: ...]* within this ordinance remain unchanged.

Section 2. That Chapter 15.08 International Building Code Adopted, is amended as follows:

15.08.010 International Building Code – Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Building Code, 2015 2018 Edition, as published by the International Code Council, Inc., including Appendices A, G, H, I, J, and K;

is referred to, adopted and made a part hereof as if fully set out in this chapter.

15.08.020 Amendments.

~~N. Section 1104.4 is amended by deleting Exception Number 1 and re-creating Exception Number 1 to read as follows:~~

~~1. Exceptions: An accessible route is not required in a two-story building.~~

~~The remainder of International Building Code Section 1104.4 remains unchanged.~~

~~O. N. Chapter 13, Chapter 13, Energy Efficiency, is amended to read as follows:~~

~~*[Editing note: Remainder of existing city code sub-section O. (re-lettered as N. pursuant to this amending ordinance) is unchanged.]*~~

~~P. O. Section 1511.3.1.1 is amended by deleting Exception Number 3 and re-creating Exception Number 3 to read as follows:~~

~~*[Editing note: Remainder of existing city code sub-section P. (re-lettered as O. pursuant to this amending ordinance) is unchanged.]*~~

~~Q. P. Section 1608.2. Ground snow loads is amended by the addition of a final sentence to read as follows:~~

~~*[Editing note: Remainder of existing city code sub-section Q. (re-lettered as P. pursuant to this amending ordinance) is unchanged.]*~~

~~R. Q. Section 1609.4, Exposure category, is amended by adding a first sentence to read as follows:~~

[Editing note: Remainder of existing city code sub-section R. (re-lettered as Q. pursuant to this amending ordinance) is unchanged.]

S. R. Section 1612.3. Insert:

[Editing note: Remainder of existing city code sub-section S. (re-lettered as R. pursuant to this amending ordinance) is unchanged.]

T. ~~Table 2902.1 is amended by the addition of a Footnote F to read as follows:~~

~~F. The minimum number of required drinking fountains shall comply with Table 2902.1 and Chapter 11 for assembly, educational, and institutional occupancies. In business, factory, mercantile and storage occupancies, drinking fountains may be provided at the discretion of the owner and/or design professional.~~

U. S. Appendix J, Grading, is amended as follows:

[Editing note: Remainder of existing city code sub-section U. (re-lettered as S. pursuant to this amending ordinance) is unchanged.]

15.08.030 Building Permit Fees.

C. Temporary Certificate of Occupancy/~~Completion~~.

~~1. One and Two Family Dwellings. The temporary certificate of occupancy/completion issuance fee for residential structures shall be one hundred dollars (\$100.00), valid for a period of thirty (30) calendar days. The fee for a temporary certificate extension shall be fifty dollars (\$50.00) for each additional thirty (30) calendar days. A residential certificate shall only be extended twice. The owner, or authorized agent, must obtain a final certificate prior to the expiration of ninety (90) days from the date of the original certificate. If a final certificate has not been obtained within the specified time limits, the chief building official may order the building vacated.~~

~~2. Commercial Structures. The temporary certificate of occupancy/completion issuance fee for commercial structures shall be one thousand dollars (\$1,000.00), valid for a period of thirty (30) calendar days. The fee for a temporary certificate extension shall be two hundred fifty dollars (\$250.00) for each additional thirty (30) days. A commercial certificate shall only be extended twice. The owner, or authorized agent, must obtain a final certificate prior to the expiration of ninety (90) days from the date of the original certificate. If a final certificate has not been obtained within the specified time limits, the chief building official may order the building vacated.~~

1. ONE- AND TWO-FAMILY DWELLINGS. THE TEMPORARY CERTIFICATE OF OCCUPANCY ISSUANCE FEE FOR RESIDENTIAL STRUCTURES SHALL BE THREE HUNDRED DOLLARS (\$300.00) AND REFUNDABLE ON A SLIDING TIME SCALE. THREE HUNDRED DOLLARS (\$300.00) IS REFUNDED IF WORK IS COMPLETED BY THIRTY (30) DAYS OR LESS; TWO HUNDRED DOLLARS (\$200.00) IS REFUNDED IF WORK IS COMPLETED BETWEEN THIRTY-ONE (31) AND SIXTY (60) DAYS; ONE HUNDRED DOLLARS (\$100.00) REFUNDED IF WORK IS COMPLETED BETWEEN SIXTY-ONE (61) AND NINETY (90) DAYS. AFTER NINETY (90) DAYS NO FEES WILL BE REFUNDED. THE OWNER, OR AUTHORIZED AGENT, SHALL OBTAIN A FINAL CERTIFICATE OF OCCUPANCY PRIOR TO THE EXPIRATION OF NINETY (90) DAYS FROM DATE OF THE ORIGINAL TEMPORARY CERTIFICATE OF OCCUPANCY. THE BUILDING OFFICIAL SHALL SEEK LEGAL REMEDIES FOR FAILURE TO OBTAIN THE REQUIRED CERTIFICATE OF OCCUPANCY AFTER NINETY (90) DAYS, AS PER SECTION 1.24.010 OF CITY CODE.

2. COMMERICAL STRUCTURES. THE TEMPORARY CERTIFICATE OF OCCUPANCY ISSUANCE FEE FOR COMMERICAL STRUCTURES SHALL BE ONE THOUSAND TWO HUNDRED AND FIFTY DOLLARS (\$1,250.00) AND REFUNDABLE ON A SLIDING TIME SCALE. ONE THOUSAND TWO HUNDRED AND FIFTY DOLLARS (\$1,250.00) IS REFUNDED IF WORK IS COMPLETED BY THIRTY (30) DAYS OR LESS; ONE THOUSAND DOLLARS

(\$1,000.00) IS REFUNDED IF WORK IS COMPLETED BETWEEN THIRTY-ONE (31) AND SIXTY (60) DAYS; FIVE HUNDRED DOLLARS (\$500.00) IS REFUNDED IF WORK IS COMPLETED BETWEEN SIXTY-ONE (61) AND NINETY (90) DAYS. AFTER NINETY (90) DAYS NO FEES ARE REFUNDED. THE OWNER, OR AUTHORIZED AGENT, SHALL OBTAIN A FINAL CERTIFICATE OF OCCUPANCY PRIOR TO THE EXPIRATION OF NINETY (90) DAYS FROM DATE OF THE ORIGINAL TEMPORARY CERTIFICATE OF OCCUPANCY. THE BUILDING OFFICIAL SHALL SEEK LEGAL REMEDIES FOR FAILURE TO OBTAIN THE REQUIRED CERTIFICATE OF OCCUPANCY AFTER NINETY (90) DAYS, AS PER SECTION 1.24.010 OF CITY CODE.

Section 3. That Chapter 15.09, International Existing Building Code, is amended as follows:

15.09.010 International Existing Building Code – Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Existing Building Code, 2015 2018 Edition, as published by the International Code Council, Inc.

is referred to, adopted and made a part hereof as if fully set out in this chapter.

15.09.020 Amendments.

C. Section 106.2.5 6 is amended by the addition of a second paragraph to read as follows:

[Editing note: Remainder of existing city code sub-section C. is unchanged.]

~~K. Section 1401.2 insert: September 10, 1907.~~

Section 4. That Chapter 15.10, International Residential Code Adopted, is amended as follows:

15.10.010 International Residential Code—Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Residential Code, 2015 2018 Edition, as published by the International Code Council, Inc., including Appendices E, G, H, and J;

is referred to, adopted, and made a part hereof as if fully set out in this chapter.

15.10.020 Amendments.

~~L. Chapter 2, Definitions, Section R202 is amended by the creation of a new definition to read as follows:~~

~~Duplex (Two Family Dwellings). A single structure that contains two dwelling units and is constructed on a single lot. Each dwelling unit is separated from each other by wall and/or floor assemblies having a one-hour fire-resistance rating. These units shall comply with Section R302.3.~~

~~M. Chapter 2, Definitions, Section R202 is amended by the deletion and re-creation of the definition of townhouse to read as follows:~~

~~Townhouse. A single-family dwelling unit constructed in a group of two (2) or more attached units in which each unit extends from foundation to roof with a yard or public way on at least two (2) sides. The units share a common lot line and shall be separated by two (2) 1-hour fire-resistance-rated wall assemblies, as further described in Section R302.2. Townhouses require parapet construction pursuant to Section R302.2.2.~~

N. L. Section R301.2 and Table R301.2(1) Climatic and Geographic Design Criteria, is amended to read as follows:

GROUND SNOW LOAD: 30# psf; WIND SPEED: 115 mph; TOPOGRAPHIC EFFECTS: NO; SPECIAL WIND REGION: NO; WIND-BORNE DEBRIS ZONE: NO; SEISMIC DESIGN CATEGORY: B; WEATHERING: Severe; FROST LINE DEPTH: 36 inches (for footings and foundations); TERMITE: Slight to Moderate; WINTER DESIGN TEMP: -1 degree Fahrenheit; ICE BARRIER UNDER LAYMENT REQUIRED: ~~No~~ YES; FLOOD HAZARDS: FIRM effective date, September 30, 1977; Map effective date: January 17, 2007; panel numbers and dates of the currently effective FIRMS:

[Editing note: Remainder of existing city code sub-section N. (re-lettered as L. pursuant to this amending ordinance) is unchanged.]

~~O. Section R302.2 is amended AS FOLLOWS:~~

~~Item 2 shall be deleted and re-created to read as follows: Townhouse units shall be separated by two 1-hour walls, one on each side of the property line. Each 1-hour fire resistance-rated wall assembly tested in accordance with ASTM E 119 or UL 263 is permitted for townhouses if such walls do not contain plumbing or mechanical equipment, ducts or vents in the cavity. The wall shall be rated for fire exposure from both sides and shall extend to and be tight against exterior walls and the underside of the roof sheathing. Electrical installations shall be installed in accordance with Chapters 34 through 43. Penetrations of electrical outlet boxes shall be in accordance with Section R302.4.~~

M. SECTION R302.13 IS AMENDED BY CREATING EXCEPTION 5 FOR FIRE PROTECTION OF FLOORS FOR DWELLINGS WHERE FUTURE WORK IN THE BASEMENT IS PLANNED BY HOME OWNER AS FOLLOWS:

5. FLOOR ASSEMBLIES TO ACCOMMODATE MECHANICAL, PLUMBING OR ELECTRICAL WORK FOR FUTURE BASEMENT FINISHES BY THE HOME OWNER.

~~P.~~ N. Section R303.4 is deleted in its entirety.

~~Q.~~ O. Section R309.5 is deleted in its entirety.

~~R.~~ P. Section R310.2.4 is amended by changing the Number 36 to 48.

~~S.~~ Q. Section R311.7.2 is amended by deleting exception Number 1.

~~T.~~ R. Section R313.1 is deleted and re-created to read as follows:

[Editing note: Remainder of existing city code sub-section T. (re-lettered as R. pursuant to this amending ordinance) is unchanged.]

~~U.~~ T. Table 602.3(5) is amended by deleting the second sentence contained in Footnote A.

~~V.~~ U. Section R908.3.1.1 is amended by deleting item Number 3 and re-creating item Number 3 to read as follows:

[Editing note: Remainder of existing city code sub-section V. (re-lettered as U. pursuant to this amending ordinance) is unchanged.]

~~W.~~ V. Part IV Energy Conservation, Chapter 11 Energy Efficiency is deleted and re-created to read as follows:

CHAPTER 11 ENERGY EFFICIENCY

Energy efficiency shall be as prescribed by the 2015 2018 Edition of the International Energy Conservation Code as adopted in City Code Chapter 15.26.

~~X~~ **W.** Section M1502.4.2 is amended to read as follows:

[Editing note: Remainder of existing city code sub-section X. (re-lettered as W. pursuant to this amending ordinance) is unchanged.]

~~Y~~ **X.** Section M1601.4.7 **M1601.4.4** is amended by the addition of a second sentence to read as follows:

[Editing note: Remainder of existing city code sub-section Y. (re-lettered as X. pursuant to this amending ordinance) is unchanged.]

~~Z~~ **Y.** Section G2406.2, Exceptions 3 and 4, are deleted in their entirety and re-created to read as follows:

[Editing note: Remainder of existing city code sub-section Z. (re-lettered as Y. pursuant to this amending ordinance) is unchanged.]

~~AA~~ **Z.** Section G2413.6 **G2413.7** is deleted and re-created to read as follows:

[Editing note: Remainder of existing city code sub-section AA. (re-lettered as Z. pursuant to this amending ordinance) is unchanged.]

~~BB~~ **AA.** Sections G2417.4.1 and G2417.2 are deleted and re-created to read as follows:

[Editing note: Remainder of existing city code sub-section BB. (re-lettered as AA. pursuant to this amending ordinance) is unchanged.]

~~CC~~ **BB.** Sections G2445.1 through G2445.7.1 are deleted with Section G2445.1 re-created to read as follows:

[Editing note: Remainder of existing city code sub-section CC. (re-lettered as BB. pursuant to this amending ordinance) is unchanged.]

~~DD~~ **CC.** Section P2503.5.1. The first sentence is amended to read as follows:

[Editing note: Remainder of existing city code sub-section DD. (re-lettered as CC. pursuant to this amending ordinance) is unchanged.]

~~EE~~ **DD.** Section P2603.5.1. Insert 36 inches for [NUMBER] in both locations.

~~FF~~ **EE.** Section P3008 is deleted in its entirety.

~~GG~~ **FF.** Section P3103.1. Change 6 inches to 12 inches in both locations.

~~HH~~ **Section E3902.2 is amended by the addition of an exception to read as follows:**

~~Exception: A maximum of two dedicated circuits, serving a refrigerator and a freezer, shall be permitted in a garage or accessory building without ground-fault interrupter protection.~~

GG. DELETE ALL THE ELECTRICAL CHAPTERS FROM THE INTERNATIONAL RESIDENTIAL CODE TO INCLUDE CHAPTERS: 34, 35, 36, 37, 38, 39 AND 40. ALL ELECTRICAL WORK SHALL COMPLY WITH THE CURRENTLY ADOPTED NFPA 70 (NATIONAL ELECTRICAL CODE).

~~H~~ **HH.** Section AE101.2, Zoning, is created to read as follows:

[Editing note: Remainder of existing city code sub-section II. (re-lettered as HH. pursuant to this amending ordinance) is unchanged.]

~~JJ~~ **II.** Appendix H, patio covers, is amended by deleting Section AH 105.2 and re-creating Section AH

105.2 to read as follows:

[Editing note: Remainder of existing city code sub-section JJ. (re-lettered as II. pursuant to this amending ordinance) is unchanged.]

Section 5. That Chapter 15.12, International Plumbing Code Adopted, is amended as follows:

15.12.010 International Plumbing Code – Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Plumbing Code, 2015 2018 Edition, as published by the International Code Council, Inc., including Appendices B, C, D, and E;

is referred to, adopted, and made a part hereof as if fully set out in this chapter.

15.12.020 Amendments.

~~J. Table 403.1 is amended by the addition of a Footnote F to read as follows:~~

~~_____ F. The minimum number of required drinking fountains shall comply with Table 2902.1 and Chapter 11 for assembly, educational, and institutional occupancies. In business, factory, mercantile and storage occupancies, drinking fountains may be provided at the discretion of the owner and/or design professional.~~

~~K. J. Section 406.2 The next to the last sentence is deleted in its entirety.~~

~~L. K. Section 715 is deleted in its entirety.~~

~~M. L. Section 903.1 Insert 12 for [NUMBER].~~

~~N. M. Section 1003.3 is amended by the addition of a final sentence to read as follows:~~

[Editing note: Remainder of existing city code sub-section N. (re-lettered as M. pursuant to this amending ordinance) is unchanged.]

Section 6. That Chapter 15.16, International Mechanical Code Adopted, is amended as follows:

15.16.010 International Mechanical Code – Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Mechanical Code, 2015 2018 Edition, as published by the International Code Council, Inc., including Appendix A;

is referred to, adopted, and made a part hereof as if fully set out in this chapter.

15.16.020 Amendments.

K. The exception #1 to Section 507.9 507.2.6 is amended as follows:

[Editing note: Remainder of existing city code sub-section K. is unchanged.]

Section 7. That Chapter 15.22, International Fuel Gas Code Adopted, is amended as follows:

15.22.010 International Fuel Gas Code – Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city

clerk, being marked and designated as:

International Fuel Gas Code, ~~2015~~ 2018 Edition, as published by the International Code Council, Inc., including Appendices A, B and C;

is referred to, adopted, and made a part hereof as if fully set out in this chapter.

Section 8. That Chapter 15.24, Dangerous Building Code, is amended as follows.

15.24.010 International Property Maintenance Code – Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

Chapters 1 and 2 of the International Property Maintenance Code, ~~2015~~ 2018 Edition, as published by the International Code Council, Inc.;

is referred to and adopted as the city of Cheyenne Dangerous Building Code, and made a part hereof as if fully set out in this chapter.

15.24.020 Amendments.

~~D. Chapters 3, 4, 5, 6, 7 and 8 are deleted and not considered a part of this Dangerous Building Code.~~

D. WITH THE EXCEPTION OF THE AMENDMENTS SET FORTH ABOVE IN SUB-SECTIONS A, B AND C, CHAPTERS ADOPTED FROM THE 2018 INTERNATIONAL PROPERTY MAINTENANCE CODE INCLUDE CHAPTERS 1, 2, 3, 4, 5, 6, 7 AND 8.

Section 9. That Chapter 15.26, International Energy Conservation Code Adopted, is amended as follows:

15.26.010 International Energy Conservation Code – Adopted.

A document, one copy of which is on file and open for inspection of the public in the office of the city clerk, being marked and designated as:

International Energy Conservation Code, ~~2015~~ 2018 Edition, as published by the International Code Council, Inc.;

is referred to, adopted, and made a part hereof as if fully set out in this chapter.

15.26.020 Amendments.

D. Section ~~107.2~~ 104.2 fees shall be as indicated in Section 15.08.030 of the Cheyenne City Code.

E. Section ~~107.3~~ 104.3 is amended by the addition of a final sentence to read as follows:

[Editing note: Remainder of existing city code sub-section E. is unchanged.]

F. Section ~~107.5~~ 104.5 is deleted and re-created to read as follows:

[Editing note: Remainder of existing city code sub-section F. is unchanged.]

S. SECTION C408.2 IS AMENDED BY ADDING EXCEPTION #3 AND #4 AS FOLLOWS, THE REMAINING SECTION IS UNCHANGED:

3. SYSTEMS IN NEW BUILDINGS NOT EXCEEDING FIFTEEN THOUSAND (15,000) SQUARE FEET GROSS FLOOR AREA.

4. ADDITIONS AND ALTERATIONS TO AN EXISTING BUILDING.

Section 10. That this ordinance shall be in full force and effect upon approval and publication but not sooner than January 1, 2019.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(S E A L) _____
MARIAN J. ORR, MAYOR

ATTEST:

CAROL INTLEKOFER, CITY CLERK

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